

Present:
Mr. Justice S M Kuddus Zaman
and
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.28705 of 2023.

Md. Shajahan

.....Accused-petitioner

-Versus-

The State

... Opposite Party

Mr. Md. Asad Uddin, Advocate

.... For the accused-petitioner

Mr. Sujit Chatterjee, D.A.G

... For the State

Heard and Judgment on: 28.02.2024.

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Demra Police Station Case No.43 dated 26.10.2021 corresponding to G. R. No.518 of 2022 under sections 6(2)/7/8/9/10/11/12 and 13 of the Santrash Birodi Ain, 2009 (amended in 2013), now pending in the Court of Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order of orders as to this Court may seem fit and proper.

Facts in short are that in this case under sections 6(2)/7/8/9/10/11/12 and 13 of the Santrash Birodi Ain, 2009 police arrested the petitioner on suspicion on 02.11.2022 and taken him to police remand twice. It has been in the forwarding report dated

03.11.2022 that the accused petitioner used to collect money for militant organization.

Mr. Md. Asad Uddin learned Advocate for the petitioner submits that the petitioner is a business man and agent of the Bikash, an online money transfer company. He was arrested by police on suspicion on 02.11.2022 but no incriminating material was recovered from his possession. He is in custody for more than one year but the investigation of this case has not yet been concluded.

Mr. Sujit Chatterjee learned Deputy Attorney General raises objection against granting of bail to the accused petitioner alleging that he is a member of a Proscribed Militant Organization and he was in charge of collection of money through Bikash for above organization.

We have considered the submissions of the learned Advocate for respective parties and carefully examined all materials on record.

In the FIR of this case five suspects have been mentioned as accused persons but the name of the petitioner did not find place in the FIR. He was arrested on 02.11.2022 and taken on police remand twice and subjected to intensive interrogation. But he did not make any confession nor any incriminating material was recovered from his possession.

The learned Advocate for the petitioner submits that the petitioner is an agent of Bikash and used to transfer money for the general public. The learned Deputy Attorney General repeatedly submits that the petitioner was involved in collection of money for the militant organization but there is no specific mention in the forwarding report or any other document of the prosecution as to what amount of money the petitioner collected from where and to whom

above money was transferred. The petitioner is in custody for more than one year and the investigation of this case could not be concluded.

Considering above materials on record, we are inclined to grant bail to the accused-petitioner.

Accordingly, the Rule is made absolute.

Let accused petitioner **Md. Shajahan, son of Abdul Hakim** be enlarged on bail subject to furnishing bail bond to the satisfaction of the Chief Judicial Magistrate, Dhaka.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.